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No.

9 - Alma Magana v. City of Long Beach, et al.

Plaintiff

Alma Magana's Motion for Judgment Notwithstanding the Verdict and Motion for New Trial

Plaintiff Alma Magana moves for

judgment notwithstanding the verdict ("JNOV") and for a new trial. Because the motions contain overlapping arguments regarding the sufficiency of evidence, the Court will address them together.

After

a 12-day trial, the jury returned a verdict for Defendants on Plaintiff Alma Magana's claims for retaliation, gender discrimination, sexual harassment, failure to prevent harassment, retaliation and discrimination under the Fair Employment and Housing Act ("FEHA"), and whistleblower retaliation. On May 13, 2026, the Court entered judgment for Defendants.

Plaintiff

moves for a new trial based on irregularity of proceedings, insufficiency of the evidence, and error in law. (Code Civ. Proc., § 657, subds. 1, 6, 7.) Any "error of law," "irregularity in the proceedings," or abuse of discretion must also be prejudicial. "[T]he trial court is bound by the rule of California Constitution, article VI, section 13, that prejudicial error is the basis for a new trial, and there is no discretion to grant a new trial for harmless error." (Sherman v. Kinetic Concepts, Inc.

(1998) 67 Cal.App.4th 1152, 1161 [citation omitted]; see Cal. Const., art. VI, § 13 ["No judgment shall be set aside, or new trial granted, in any cause, on the ground of . . . any error as to any matter of procedure, unless, after an examination of the entire cause, including the evidence, the court shall be of the opinion that the error complained of has resulted in a miscarriage of justice."].)

Error in Law

Plaintiff argues that the Court made several legal errors during the trial that unfairly prejudiced her.[1]

A. Exclusion of "Me Too" Evidence

Plaintiff argues that the Court erroneously excluded Danielle Cortez's "me too" testimony. She contends that Cortez, a female job applicant to the Long Beach Police Department, would have provided probative "me too" evidence regarding Defendant Lehman's inappropriate conduct toward her. Specifically, Plaintiff contends Cortez would have reported that Lehman contacted her through social media, sent her 'heart' and 'fire' emojis, asked for her personal cell phone number, offered to help her prepare for her interview, and asked her on a date. (See Mot. for New Trial, at p. 8.) According to Plaintiff, Cortez's conditional offer of employment was not converted to a final offer after she rejected Lehman's advances. Plaintiff argues that this conduct was sufficiently similar to the conduct at issue in the case, and should have been admitted for the purpose of showing intent, motive, or plan under Evidence Code section 1101(b).

The Court did not commit legal error when excluding this "me too" evidence. "Me too" evidence is "evidence of harassment or discrimination experienced by employees other than a plaintiff and of which the plaintiff was not aware." (*Pantoja v. Anton* (2011) 198 Cal.App.4th 87, 99 (*Pantoja*)). Although such evidence cannot be used as character evidence, it may be relevant "to show intent or motive, for the purpose of casting doubt on an employer's stated reason for an adverse employment action." (*Johnson v. United Cerebral Palsy/Spastic Children's Foundation of Los Angeles and Ventura Counties* (2009) 173 Cal.App.4th 740, 760 (*Johnson*)); accord *Pantoja*, at p. 114 ["Me-too" evidence can be probative of discriminatory intent and admissible under Evidence Code section 1101,

subdivision (b)].)

The probative value of “me too” evidence “is inherently ‘ ‘fact based and depends on many factors, including how closely related the evidence is to the plaintiff’s circumstances and theory of the case.’ ” [Citation.] ‘[S]imilar considerations are involved in balancing the probative value of the evidence against its prejudicial effect.’

[Citation.] ‘Me too’ evidence is therefore not subject to any per se rule of exclusion, and may be admissible to prove a defendant’s motive or intent even where the conduct occurred outside the plaintiff’s presence and at times other than when the plaintiff was employed.” (Meeks v. Autozone, Inc. (2018) 24 Cal.App.5th 855, 871; accord Johnson, supra, 173 Cal.App.4th at p. 767 [“Me too” evidence may be admissible when it “sets out factual scenarios related by former employees of the defendant that are sufficiently similar to the one presented by the plaintiff concerning her own discharge by defendant . . . and the probative value of the evidence clearly outweighs any prejudice that would be suffered by defendant by its admission.”].)

The Court properly found that Cortez’s various interactions with Lehman were not sufficiently similar to his conduct toward Plaintiff in this case. Importantly, Cortez was not an employee of the Long Beach Police Department—she was a job applicant. Therefore, Lehman never possessed any formal supervisory power over her like he did over Plaintiff. There was also no proffered evidence that Lehman played any non-speculative role in whether to extend employment to Cortez. While Plaintiff contends Lehman asked Cortez on a date, she denies he made any such proposal to her. Further, the “similarities” with this case were at best generic. Mutual following on social media and “liking” one’s posts are as ubiquitous as wearing blue jeans and eating pizza. Standing alone, they establish nothing germane to this case. Allowing such common, largely innocuous conduct, without more, to constitute “me too” evidence would subsume the rule and water down the “substantial similarity” requirement.

The Court also properly exercised its discretion under Evidence Code section 352 to exclude the evidence. Evidence Code section 352 provides: “The court in its discretion may exclude evidence if its probative value is substantially outweighed by the probability that its admission will (a) necessitate undue consumption of time or (b) create substantial danger of undue prejudice, of confusing the issues, or of

misleading the jury.”

With respect to Plaintiff's claims, the probative value of Cortez's offered testimony was relatively low. Cortez reported that Lehman sent her messages on social media that contained various heart and fire emojis. Under the totality of circumstances, the evidence supports only a weak, attenuated inference of intent to harass women because of their sex or gender. Allowing evidence that Lehman sent emojis as part of text messages to others, conduct that is commonplace in modern society and standing alone, far from evidence of harassment.

Further, Cortez's testimony would create a substantial danger of undue prejudice, of confusing the issues, or of misleading the jury. “Although ‘me too’ evidence can be admissible to prove intent, motive, and the like with respect to the plaintiff's own protected class, it is never admissible to prove an employer's propensity to harass” or discriminate. (Pinter-Brown v. Regents of University of California (2020) 48 Cal.App.5th 55, 96; accord Evid. Code, § 1101(a).) There was a high possibility that the jury would have used the evidence improperly as evidence of a propensity to act in the manner described even though there was no evidence of such conduct constituting harassment in this case. It is undisputed that Plaintiff not only presented no documentary evidence of what posts Lehman purportedly “liked” (she testified they could have been meals that she photographed) but she admitted that such likes were not harassing. Indeed, Plaintiff testified that Lehman's texts were routine and work-related, not harassing. Plaintiff thus sought to introduce “me too” evidence to show prior conduct that Plaintiff admits did not rise to the level of harassment, rendering the conduct irrelevant. Therefore, the Court properly concluded that the probative value of the evidence was substantially outweighed by the probability that the testimony would inflame and prejudice the jury.

Plaintiff also argues that the Court improperly excluded this evidence for the narrow purpose of impeaching Lehman's testimony that he had never flirted with Plaintiff over Instagram or text, sent her text messages with heart, fire, or smiley face emojis, or asked her out on a date. (JNOV Tanter Decl., Ex. B, Transcript at 109:4-111:1.) However, Cortez's testimony as to her experience with Lehman would not contradict Lehman's denials as to his interactions with Plaintiff. Therefore, it was properly excluded.

Plaintiff argues that the Court failed to conduct an evidentiary hearing before excluding Cortez's testimony. However, the Court is not required to conduct an evidentiary hearing; an offer of proof on the issue is sufficient. (See Evid. Code § 402 ["The court may hear and determine the question of the admissibility of evidence out of the presence or hearing of the jury"].)

B. Timeliness of Motion in Limine No. 1

Plaintiff argues that the Court erred when it allowed Defendant Lehman to amend and re-serve his motion in limine no. 1, and decided the motion during trial. This is proper. "[A] motion in limine filed before or during trial need not be accompanied by a notice of hearing. The timing and place of the filing and service of the motion are at the discretion of the trial judge." (California Rules of Court, rule 3.1112(f).)

Before trial, the Court advised the parties that it needed more information before it could rule on Defendants' motion in limine to exclude testimony by Cortez. "In limine rulings are tentative and the court retains discretion to make different rulings as the evidence unfolds." (Scott v. C.R. Bard, Inc. (2014) 231 Cal.App.4th 763, 784.) Specifically, the Court asked to hear Plaintiff's testimony and her offer of proof regarding Cortez's testimony before it could rule on whether to grant the motion. After Plaintiff testified, Plaintiff's counsel made a offer of proof. Finding that the offer of proof did not raise a prospect that Cortez would provide pertinent evidence, the Court granted the motion in limine and excluded the Cortez testimony. To the extent Plaintiff suggests that the Court should have ruled on the motion based on an incomplete record and based only on counsel's assurances that Plaintiff's testimony would align with Cortez's, the Court finds no legal support for that position. The Court properly exercised its discretion to rule on the admissibility question during trial.

Plaintiff mentions that this decision also constitutes an irregularity in proceedings under Code of Civil Procedure section 657(1). "Irregularity of the proceedings" is a catchall phrase referring to conduct that violates the right of a party to a fair trial. (Montoya v. Barragan (2013) 220 Cal.App.4th 1215, 1230.) For the reasons stated above, no party was denied the right to a fair trial based on the Court decision, so there was no irregularity of proceedings.

C. Exclusion

of McGuire's Impeachment Evidence and Other Evidence Regarding the Department's Failure to Terminate Officers

Plaintiff argues that the Court improperly excluded impeachment evidence from former detective Mark McGuire. Plaintiff contends that McGuire testified that he worked alongside four witnesses, including Defendant Lehman, and knew whether "discipline was applied consistently across all officers [and] whether he had conducted any investigation in which Lehman was involved and made findings that bore on Lehman's truthfulness." (Mot. for New Trial, at p. 12.) Plaintiff also argues that the Court improperly excluded evidence of other officers' misconduct, such as Sergeant Castillo's arrest for a DUI, as comparator evidence. According to Plaintiff, this evidence could have shown that the Department failed to terminate other officers for their misconduct, while they unjustifiably terminated Plaintiff for her similar or lesser misconduct. Plaintiff argues that the introduction of said testimony and evidence was not barred by Pitchess privilege. Instead, McGuire's testimony was that of a percipient witness, and did not constitute an improper presentation of peace officer employment records.

The Court properly excluded this evidence. Generally, peace officer personnel records, and information obtained from said records, are confidential and are not disclosed in any civil proceeding. (See Pen. Code, § 832.7.) Penal Code § 832.8(a)(5) defines "personnel records" to include "[c]omplaints, or investigations of complaints, concerning an event or transaction in which he or she participated, or which he or she perceived, and pertaining to the manner in which he or she performed his or her duties." To seek these records and information obtained from these records, a Pitchess motion must be filed. The motion would include "[a]ffidavits showing good cause for the discovery or disclosure sought, setting forth the materiality thereof to the subject matter involved in the pending litigation and stating upon reasonable belief that the governmental agency identified has the records or information from the records." (Evid. Code, § 1043(b)(3).)

Plaintiff seems to suggest that because McGuire and Castillo may have had disciplinary information in their heads, Plaintiff could circumvent the Pitchess process. This similarly applies to testimony concerning the contents of personnel records. California Penal Code § 832.7(a) plainly prohibits the disclosure of peace officer

personnel records and information obtained from those records in any civil proceeding except through the Pitchess motion procedure. The Court is unaware of any California appellate court that has carved out a “personal knowledge and memory” exception to this protection for civil proceedings. (Mot. for New Trial, at p. 12.) Plaintiff identifies no such authority. While the issue remains unresolved, the statutory text and available dicta strongly point toward a broader prohibition.

“[S]tatutes which protect personnel records and information from such records also protect the identical information about personnel history which is within the officers’ personal recollections. There would be no purpose to protecting such information in the personnel records if it could be obtained by the simple expedient of asking the officers for their disciplinary history orally.” (City of San Diego v. Superior Court (1981) 136 Cal.App.3d 236, 239 [emphasis in original]; see also Zanone v. City of Whittier (2008) 162 Cal.App.4th 174, 187 n.14 (the court of appeal identified the “intriguing—and apparently unresolved—question whether a party that legitimately obtains personnel records subject to such protection without first filing a Pitchess motion ... is nonetheless precluded from offering that information into evidence or using it in cross-examination: that is, whether the Pitchess procedures affect not only discovery of personnel information but also its admissibility.”))

Here, McGuire and Castillo’s testimony regarding other officers’ disciplinary history is protected. Plaintiff made no motion to obtain or permit disclosure of such information at trial. Therefore, it was properly excluded from trial.

D. Exclusion of Federal Court Findings Regarding Commander Lance

Plaintiff argues the Court improperly excluded findings from a federal court that would be used to impeach Commander Darren Lance, the commander who oversaw Plaintiff’s IA investigation. The findings in question evaluated a declaration Lance submitted in another matter. According to Plaintiff “[t]he federal court found the City had ‘acted neither reasonably nor with due diligence’ in connection with records under Lance’s supervision, and imposed sanctions.” (Mot. for New Trial, at p. 14.) Therefore, Plaintiff argues the federal court findings were probative to show Lance’s credibility.

This evidence was properly excluded at trial.

The federal court did not find that Lance was dishonest or not credible; rather it criticized the City's conduct. Therefore, because this evidence did not speak to Lance's honesty, credibility, or trustworthiness, it was properly excluded.

Insufficiency of Evidence

In

both of her motions, Plaintiff argues there was insufficient evidence to support the jury's verdict. Code of Civil Procedure section 657 provides, "A new trial shall not be granted upon the ground of insufficiency of the evidence to justify the verdict ... unless after weighing the evidence the court is convinced from the entire record, including reasonable inferences therefrom, that the court or jury clearly should have reached a different verdict or decision."

Similarly,

a JNOV may be granted " "only if it appears from the evidence, viewed in the light most favorable to the party securing the verdict, that there is no substantial evidence in support." " (Burch v. CertainTeed Corp. (2019) 34 Cal.App.5th 341, 348.) "Substantial evidence is that of a 'ponderable legal significance, reasonable, credible, and of solid value.' " (Ibid.) In determining whether there is substantial evidence, the court must "resolve all evidentiary conflicts and indulge all reasonable inferences in support of the judgment." (Ibid.) " 'The court must accept as true the evidence supporting the jury's verdict, disregarding all conflicting evidence and indulging in every legitimate inference that may be drawn in support of the judgment.' " (Kephart v. Genuity, Inc. (2006) 136 Cal.App.4th 280, 289.)

In her motion, Plaintiff challenges

the jury's verdict on three claims: sexual harassment, retaliation, and gender discrimination. Substantial evidence supports the verdict on all three causes of action.

A. Sexual Harassment

Plaintiff

argues there is insufficient evidence supporting the jury's finding that Plaintiff was not subjected to sexual harassment. In so arguing, Plaintiff points to five "admissions" made by Defendant Lehman during his in-court

testimony: (1) Lehman admitted he followed Plaintiff on social media, and could not deny that he sent her heart emojis; (2) he admitted he saved her contact under her first name only and had a contact photo under her name; (3) he admitted he was aware of her romantic life; (4) he admitted such conduct could possibly constitute harassment, and (5) he admitted that, generally, a subordinate may stay silent when enduring harassment. (See JNOV, at p. 4; Mot. for New Trial, at p. 15.)

For purposes of the JNOV, these discrete “admissions” do not show that the jury’s verdict was unsupported by substantial evidence. Importantly, the relevant legal standard here is not whether favorable evidence exists that supports Plaintiff’s position. In a civil case that has reached the trial stage, this is expected. Rather, the dispositive question, and the question relevant to the Court’s analysis here, is whether there was substantial evidence to support the jury’s verdict. Plaintiff inexplicably does not reference any evidence that supported the jury’s verdict, nor analyze whether it amounted to “substantial” evidence. She instead points only to evidence supporting her position. This does not show an absence of substantial evidence supporting the verdict. Plaintiff’s framing of the inquiry is skewed.

In addition, the Court finds that the entire record does not demonstrate that the jury clearly should have reached the opposite verdict for purposes of the new trial motion. There was ample evidence supporting the verdict. Plaintiff testified that she also followed Lehman on social media, that she contacted him and other police officers on their personal cell phones, and that she kept no photos showing that she received messages from Lehman with emojis. Plaintiff also participated in group texts with other officers on personal cell phones, including accepting Lehman’s invitation to smoke cigars on duty. Plaintiff did not provide any evidence of messages from Lehman asking her about her romantic life. Critically, Plaintiff admitted that when she complained about Lehman, she told his supervisor that he had not engaged in sexual harassment, a position that changed when she presented her case at trial. This evidence sufficiently supports the jury’s verdict in Defendants’ favor.

B. Retaliation
and Discrimination

Plaintiff

argues there is no substantial evidence, or insufficient evidence, supporting the jury's finding that Plaintiff was not subjected to retaliation and discrimination. For retaliation, Plaintiff emphasizes several pieces of evidence to support the causal link between her protected activity and termination. Specifically, Plaintiff argues that the chronology of events that occurred after she filed her complaint "does not present a close question" as to whether there was causal link. (JNOV, at p. 5; see also Mot. for New Trial, at p. 15.) She points to the fact that Defendants had not recorded any concerns regarding her performance prior to her filing of the complaint, that Plaintiff's IA investigation began only two days after she filed her complaint, and that Defendant Lehman was never interviewed as part of the investigation. (JNOV, at p. 5; see also Mot. for New Trial, at p. 15.) For discrimination, Plaintiff presents evidence that Lehman excused male officers' bad performance, while not offering the same grace to Plaintiff, and that Lehman's IA investigation was suspended without a formal finding. (JNOV, at pp. 5-6; see also Mot. for New Trial, at p. 16.)

Again,

for purposes of the JNOV, this evidence does not show an absence of substantial evidence supporting the verdict. Instead, it offers conflicting evidence, which the Court must disregard.

In

addition, after reviewing the entire record, the Court cannot conclude that the jury clearly should have reached a different verdict on these claims. Defendants presented evidence at trial that Plaintiff was terminated two years after filing her complaint about Lehman, who was not involved in her termination. Importantly, Defendants also presented evidence of legitimate reasons for her termination, such as being publicly intoxicated, screaming on video at Orange County sheriff deputies, and striking a deputy, which resulted in her arrest. Defendants also presented evidence of another incident, where Palm Springs police responded to a call involving Plaintiff that, while not resulting in an arrest, raised questions about her fitness to serve. It was evidence of these incidents, all of which Plaintiff ignores, that was the focus of the IA investigation and ultimately her termination. This evidence supports the jury's verdict.

Prejudicial

Error

Even if the Court identified actual legal error or insufficiency of evidence, Plaintiff provided little to no evidence that this would have been prejudicial nor resulted in a miscarriage of justice. Instead, in both motions, Plaintiff argues that there was cumulative prejudice because “[e]ach of the foregoing errors was prejudicial standing alone.” (Mot. for New Trial, at p. 16.) Plaintiff does not attempt to show how the verdict would have been different if the purported errors were not made. Plaintiff does not meet her burden.

Disposition

Plaintiff

Alma Magana's motion for new trial is denied.

Plaintiff Alma Magana's motion for judgment notwithstanding the verdict is denied.

[1] The Court notes

that Plaintiff's counsel's declarations submitted in support of both motions are unsigned. Also, Plaintiff's counsel's declaration filed in support of the motion for new trial claims that eight exhibits are attached, including a minute order and uncertified copies of the trial transcripts. Only two of those exhibits appear to overlap with those submitted in support of the motion for judgment notwithstanding the verdict. No such evidence was attached to the declaration. Without this evidence, the Court is severely limited in its review of the record.